

Court No. - 3

Case :- WRIT - C No. - 7106 of 2024

Petitioner :- Awdhesh Kumar Gupta

Respondent :- Managing Director Madyanchal Vidhut Vitran Nigam Limited Lko. And 2 Others

Counsel for Petitioner :- Arjun Kumar Kaushal

Counsel for Respondent :- Manish Jauhari

Hon'ble Mrs. Sangeeta Chandra,J.

Hon'ble Brij Raj Singh,J.

1. Heard learned counsel for the petitioner and Sri Manish Jauhari, learned counsel for the respondent.

2. This petition has been filed with the following main prayer:-

"Issue a writ, order or direction or the nature of Certiorari to quash the impugned false Electricity Bill bearing A/C No.1461094000 and Bill No.146457258424 dated 17.07.2024 showing the payable amount Rs.1,25,035/- issued by opposite no.3 which is already annexed as Annexure No.1. to this writ petition."

3. It is the case of the petitioner that he was initially having a domestic electricity connection of 2 K.W. He wished to establish a flour mill and, therefore, prayed for enhancing of the load to 8 K.W. The petitioner deposited the requisite fee and the wattage was enhanced. The first electricity bill which was issued to the petitioner on 06.11.2023 showed Rs.73,152/- to be payable, whereas the previous meter reading shown as 861 and present reading shown as 474. The petitioner tried to convince the respondent no.3 to correct the electricity bill, but nothing has been done in the matter. The petitioner has deposited Rs.10,000/- in February, 2024 and in March, 2024 on the assurance of the respondent no.3 that the false bill shall be corrected. Now, the respondent no.3 has disconnected the electricity connection of the petitioner on 23.07.2024. Hence this petition has been filed.

4. Sri Manish Jauhari, learned counsel for the respondent, states that the petitioner has a billing

dispute which could be appropriately settled under paragraph-6.5 of the Electricity Supply Code.

5. This petition is ***disposed of*** with a direction to the petitioner to deposit Rs.50,000/- and make an application under paragraph-6.5 to the respondent no.2 within a week from today. As soon as the petitioner deposits Rs.50,000/-, the electricity connection shall be reconnected and the Executive Engineer shall consider the application of the petitioner for settlement of billing dispute on its merits and dispose of the same within six weeks thereafter.

Order Date :- 21.8.2024
Rahul